

Court No. - 7

Case :- WRIT - C No. - 74250 of 2010

Petitioner :- Ram Rang

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Tripathi B.G. Bhai, Pramod Kumar Singh

Respondent Counsel :- Rakesh K. Srivastava

Hon'ble Vineet Saran, J.

Hon'ble Sabhajeet Yadav, J.

Connect with Writ Petition No.49567 of 2010.

The contention of the petitioner is that the electricity connection obtained by him is a domestic connection and not for commercial use whereas, billing is being done on commercial rate. According to the petitioner at the most, he is liable to pay a sum of Rs. 8,716/- towards electricity charges when calculated on domestic rates.

Sri Rakesh K. Srivastava, learned counsel appearing for the respondents no. 2 and 3 seeks time to obtain instructions. Let a counter affidavit be filed within three weeks. Rejoinder affidavit may be filed within two weeks.

List thereafter.

As an interim measure, it is directed that the recovery proceedings for realisation of Rs. 1,39,135/- and odd toward electricity dues shall remain stayed provided the petitioner deposits a sum of Rs.10,000/- within fifteen days from today.

In the event of default in depositing the aforesaid amount, the interim protection granted by this Court shall stand automatically discharged and the authorities will be at liberty to proceed in accordance with law.

Order Date :- 23.12.2010

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(Sabhajeet Yadav, J.) (Vineet Saran, J.)

Court No. - 43

Case :- WRIT - C No. - 74250 of 2010

Petitioner :- Ram Rang

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Tripathi B.G. Bhai, Pramod Kumar Singh

Counsel for Respondent :- Rakesh K. Srivastava

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

List again on **21.3.2023** along with connected Writ Petition No.49567 of 2010.

Order Date :- 14.3.2023

IB

Court No. - 43

Case :- WRIT - C No. - 74250 of 2010

Petitioner :- Ram Rang

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Tripathi B.G. Bhai, Pramod Kumar Singh

Counsel for Respondent :- Rakesh K. Srivastava

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

List again showing the name of Shri Chandra Shekhar Singh, Advocate as one of the counsel for respondents i.e., Uttar Pradesh Power Corporation Ltd.

Order Date :- 21.3.2023

IB

Court No. - 43

Case :- WRIT - C No. - 74250 of 2010

Petitioner :- Ram Rang

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Tripathi B.G. Bhai, Pramod Kumar Singh

Counsel for Respondent :- Rakesh K. Srivastava

Hon'ble Salil Kumar Rai, J.

Hon'ble Arun Kumar Singh Deshwal, J.

Heard learned counsel for the petitioner and Sri R.K. Srivastava, learned counsel for the respondents.

By the present writ petition, the petitioner is challenging the electricity bill dated 15.7.2010 on the ground the same was issued treating the electricity connection of the petitioner as commercial, though he had obtained domestic electricity connection.

It is contended on behalf of the petitioner that as per the impugned bill, demand was raised of Rs. 1,39,135/-, though it could not be more than Rs.8,716/- if the same was calculated treating the connection of the petitioner as domestic. In support of his connection the petitioner has relied upon the judgement dated 3.3.2023 passed in Writ-C No. 47278 of 2010 (*Somai vs. U.P. Power Corporation Ltd. Lko. Thru. Chairman/Md and others*) and prayed that his writ petition may also be disposed of in terms of above order passed by this Court.

Considering the submissions of the parties, we dispose of the present petition with a direction that the recovery proceedings for realisation of Rs.1,39,135/-, in pursuance of the impugned electricity bill dated 15.7.2010, shall remain stayed, provided the petitioner deposits Rs.8,716/- within 15 days from today. In the event of default in depositing the aforesaid amount, the interim protection, granted by this Court, shall automatically discharged and authorities shall proceed in accordance with law.

It is further directed that the petitioner shall file an objection against the impugned electricity bill before the respondent No.2 within three weeks from today along with copy of the present order and the respondent No.2 will decide the same by a speaking order and until the objections are decided, no further recovery shall be made from the petitioner in pursuance of the impugned bill.

If the decision is taken against the petitioner by respondent No.2, then the petitioner will have the liberty to file an appeal against the said assessment order as per the provisions of Electricity Act, 2003 as well as U.P. Electricity Supply Code, 2005.

With the aforesaid direction, the writ petition stands **disposed of**.

Order Date :- 28.3.2023

Vandana